

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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GREGORY DONAWA,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE ANTHONY
BIONDOLILLO (tax # 943004), DETECTIVE GERALD
CUCCHIARA (tax # 938303), DETECTIVE JAY
RICHIEZ (tax # 941089), POLICE OFFICERS JOHN
DOES 1-5,

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff alleges that the City of New York and New York City Police Officers of the Brooklyn South Gang Squad violated his rights under 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution by falsely arresting him. Plaintiff also asserts claims of false arrest and vicarious liability under New York state law. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invoke the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his New York state law claims of false arrest and vicarious

liability which form part of the same case and controversy as plaintiff's federal claims under Article III of the United States Constitution.

4. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because the City of New York is located in this District and because the incident in question occurred in this District.

JURY TRIAL

5. Pursuant to Fed. R. Civ. P. 38, plaintiff demands a jury trial.

NOTICE OF CLAIM

6. In connection with plaintiff's claims of false arrest and vicarious liability under state law, a notice of claim was duly filed with the City of New York within 90 days of the arrest of plaintiff, more than 30 days have elapsed since such filing, and the City has not offered to settle plaintiff's state law claims.

7. The City of New York noticed plaintiff for a 50-h hearing, plaintiff exercised his right to adjourn the 50-h hearing, and the City never rescheduled the hearing thereby waiving its right to a 50-h hearing.

8. This action is brought within one year and 90 days of the arrest of plaintiff.

PARTIES

9. Plaintiff is a resident of the State of New York, County of Kings.

10. The City of New York is a municipal corporation organized under the laws of the State of New York.

11. The individual defendants are members of the New York City Police Department ("NYPD"). The individual defendants acted under color of state law and within the

scope of their employment as members of the NYPD at all relevant times herein. The individual defendants are sued in their individual capacities.

STATEMENT OF FACTS

12. Plaintiff has been employed by United Cerebral Palsy of New York City as a patient care technician since 2009. The arrest at issue in this case was plaintiff's first and only arrest.

13. During the evening of April 3, 2015 and the early morning hours of April 4, 2015, plaintiff and his friend Christopher Sessions attended a party in the East Flatbush section of Brooklyn.

14. On the morning of April 4, 2015, plaintiff and Sessions left the party with two women that they had met for the first time at the party. One of the women was Kerryann Wiltshire.

15. Sessions made with plans with Wiltshire and the second woman to go to a diner for breakfast, while plaintiff intended to go home to sleep.

16. The four individuals entered a dollar cab to take them to their destinations in Brooklyn.

17. Wiltshire sat in the front passenger seat of the cab, while plaintiff, Sessions and the second woman sat in the back.

18. The defendants, including Detective Anthony Biondolillo, Detective Gerald Cucchiara and Detective Jay Richiez, allegedly observed the driver of the dollar cab commit a traffic violation and activated their lights and sirens in an attempt to stop the cab.

19. The cab driver, who it was later learned is named Okafpr Onuwa, refused to pull over and led the defendants and other NYPD officers on a wild chase.

20. On East 48th Street between Church Avenue and Linden Boulevard, the driver stopped the cab and fled on foot.

21. Officers apprehended the driver less than a block away. The driver resisted arrest.

22. Without legal cause, the defendants searched plaintiff, Sessions, Wiltshire and the second woman, all of whom remained seated in the car.

23. Nothing illegal was found on plaintiff.

24. The defendants allegedly found a handgun on Wiltshire.

25. Plaintiff, who had just met Wiltshire a short time earlier at the party, did not know that Wiltshire had a firearm in her possession and the firearm was never in plain view. Accordingly, plaintiff, who was seated in the rear of the cab while Wiltshire was seated in the front, was never in possession of the firearm.

26. The defendants, acting in concert, arrested plaintiff, Sessions, Wiltshire, the second woman and the driver and took them to the 67th Precinct. According to the defendants, plaintiff stated to them in sum and substance, "I can't go to jail. I have a job. I don't know whose gun that is. It must have been the driver's. That's probably why he ran."

27. Although plaintiff was not found in possession of a firearm, Detective Biondolillo, acting in concert with other defendants, falsely charged plaintiff with criminal possession of a weapon.

28. The defendants charged the other three passengers with criminal possession of a weapon and charged the driver with weapons possession, assault, resisting arrest and various traffic offenses.

29. After the defendants completed the arrest paperwork, plaintiff and the others were taken to Brooklyn Central Booking.

30. While plaintiff was in Brooklyn Central Booking, Detective Biondolillo, acting in concert with the other defendants, misrepresented to the Kings County District Attorney's Office that plaintiff was found in possession of a weapon.

31. On April 4, 2015, the Kings County District Attorney's Office declined to prosecute plaintiff causing plaintiff to be released from Brooklyn Central Booking at approximately 9:30 p.m.

32. The District Attorney's Office also declined to prosecute Christopher Sessions and the unidentified woman who was with Wiltshire.

33. As a result of being arrested, plaintiff was not allowed to come to work at the United Cerebral Palsy of New York City until May 10, 2015, and since May 10, 2015, plaintiff has been reduced to a part-time schedule.

FIRST CLAIM

(§ 1983; FALSE ARREST)

(Against All Defendants)

34. Plaintiff repeats the foregoing allegations.

35. Defendants, acting under color of state law, arrested and imprisoned plaintiff without legal justification or probable cause in violation of § 1983 and the Fourth Amendment.

36. Defendants intended to confine the plaintiff, plaintiff was conscious of his confinement, plaintiff did not consent to his confinement, and plaintiff's confinement was not privileged or lawful.

37. Defendants' conduct caused plaintiff to suffer a loss of liberty, emotional distress, financial loss, damage to his reputation and other personal injuries.

38. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

SECOND CLAIM

(§ 1983; FAILURE TO INTERVENE)

(Against All Defendants)

39. Plaintiff repeats the foregoing allegations.

40. Defendants, while acting under color of state law, had a reasonable opportunity to prevent the violations of plaintiff's rights under the Fourth Amendment, but they failed to fulfill their constitutional obligation to intervene.

41. Defendants' conduct caused plaintiff to suffer a loss of liberty, emotional distress, financial loss, damage to his reputation and other personal injuries.

42. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

THIRD CLAIM

(FALSE ARREST UNDER N.Y. STATE LAW)

(Against All Defendants)

43. Plaintiff repeats the foregoing allegations.

44. Defendants, acting within the scope of their employment as members of the NYPD, arrested and imprisoned plaintiff without legal justification or probable cause in violation of New York state law.

45. Defendants intended to confine the plaintiff, plaintiff was conscious of his confinement, plaintiff did not consent to his confinement, and plaintiff's confinement was not privileged or lawful.

46. The City of New York is vicariously liable to plaintiff.

47. Defendants' conduct caused plaintiff to suffer a loss of liberty, emotional distress, financial loss, damage to his reputation and other personal injuries.

48. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

WHEREFORE, plaintiff requests the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: July 28, 2015

/s/

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